

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 10, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne (arriving at 6:01 p.m.) and Mr. Spiker. Absent: Mr. Pierson and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. Members of Boy Scout Troop 116 present at the meeting led the pledge of allegiance.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Ms. Broyles, agenda item #22(a) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on August 27, 2012. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest) due to a voucher payable to Ameri-Tech HVAC Services and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public meeting for the purpose of receiving comments and input on a transfer of ownership and transfer of location for a retail liquor license application filed with the City Clerk's Office for Safeway Stores 46, Inc. d/b/a Safeway Store #2975, 305 Cole Shopping Center, Cheyenne, Wyoming (License currently held by Lambousis Revocable Trust, 112 W. 17th Street, Cheyenne, Wyoming). John Sundahl, attorney representing Safeway Stores, referenced three documents he had provided Council members; introduced staff members of Safeway Stores in attendance at the meeting, and reviewed the proposed location and size of building where they plan to transfer the liquor license for the purpose of operating a package liquor store. He noted Safeway's support to various organizations, agencies and activities and commitment to the community, and advised the Board of Adjustment recently approved a conditional use permit for the type of business proposed at the location. Jeff Fergot, Design Manager and Corporate Architect for Safeway, commented on the site review and clarified they have an architect engaged to do renovations for 2 buildings that will remain on the site, and advised a phasing plan is in place. He reviewed square footage of the building and exterior improvements planned for the package liquor store, and stated the store will provide a convenience for their customers and shoppers in the area. Jay Gomez, Safeway District Manager, reviewed the store's liquor training for staff, which includes TIPS training, and

enforcement policies, and reviewed security measures that will be in place. Mr. Sundahl further advised as part of the Board of Adjustment application process they were required to notify individuals that live in the area of the time and place of the Board of Adjustment meeting. Upon inquiry, Mr. Sundahl confirmed Safeway has an existing lease in place for the property proposed for the package liquor store and if the license is approved and Safeway should want to move the license to a different location in the future, an application requesting a change of location is required to come before the governing body. Larry Proietti, Foy Jolly, and Major Dorr spoke in opposition to the transfer of location and ownership, raising the following concerns: Alcohol sales in a grocery store environment; past governing body actions denying similar application requests; competitive concerns involving grocery stores vs. liquor stores; negative alcohol environment relative to youth presence, and concerns with setting a precedent by issuing a retail liquor license to a grocery store applicant and the proposed location being adjacent to a residential neighborhood. Annette Williams requested information on how near-by residents were notified of the proposed package store relative to the Board of Adjustment process and requested a copy of the letter that Safeway issued. John Lambousis spoke in support of the transfer commenting on his years involved in the liquor business, Safeway's plans to operate a small scale site, in a separate building with its own entrance/exit, and Safeway's plans to redevelop the area, noting the opportunity for additional community businesses and sales tax benefits. Jan Nelson-Schroll spoke in support of the concept of revitalizing the shopping center area and Safeway's re-development plans, which will not intrude into the residential neighborhood. Upon inquiry, Mr. Sundahl provided further information on the notifications to residents in the area, pursuant to the Board of Adjustment process, and content contained in the notices, noting notifications were issued twice due to the matter being continued before the Board due to the lack of a quorum. Pursuant to Ms. Williams' previous request, he advised he would provide a copy of the notification that was issued to residents to the Development Office to share with Ms. Williams. Comments made by governing body members included inquiries pertaining to leasing of the property, potential future re-location of the license, and concerns with youth and domestic challenges currently observed in the surrounding residential neighborhood. There being no further comments and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

ORDINANCE - Amending, repealing, and creating certain sections of Chapter 10.52, Stopping, Standing, and Parking Generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming, relating to the Parking of Recreational Vehicles and Trailers. The following individuals spoke in reference to the ordinance: Joe McKee, Walter Barber, Peggy Hehr, Scott Dominick, Glenn Crock, Connie Cranmore, John Dunlay, Charlie Giroux, Frank Cole, Frank Cross, Tom Zachary, M. Lee Hasenauer and Barbie Harrington. Topics presented and discussed included: Allowing a reasonable amount of time for RVs (recreational vehicles) or trailers to be parked on streets, especially in neighborhoods with narrow street widths; being able to park an RV in front of your own residence; utilization of off-site RV storage facilities; concerns with neighbors parking multiple vehicles, including but not limited to RVs, on the street which occupy street space in front of other residents' homes; current parking restrictions involving a required distance (i.e. 10 ft.) from the street centerline and how many streets in the City are affected by the distance; safety hazards regarding other visual obstructions such as trees and bushes blocking drivers' view at intersections; legally parked vehicles; "eye-sore" vs. safety issues pertaining to intent of the ordinance; width of RVs vs. various other types of vehicles; definition of an RV relative to large sized vehicles (ex: Peterbilt) converted for use as an RV; allowing property owners to determine who parks in front of their home and being courteous neighbors; standards for street widths outlined in the Unified Development Code (UDC); uniform enforcement concerns; whether the ordinance, if approved, is eligible for a referendum by petition process, and general

perception that the proposed ordinance punishes RV/trailer owners. During comments and upon inquiry, Nathan Beauheim, Assistant City Engineer, stated he estimated that any City street built prior to the WWII time frame probably doesn't have the required 10 ft. parking distance width and provided information generally on where many of these streets are located, noting he would try to compile further information pursuant to the inquiry for the next Public Services Committee meeting. He further advised the standard street width is 36 ft. per the UDC. Upon inquiry, Dan White, City Attorney, reviewed current City Code requirements involving the 10 ft. distance for streets that have centerline pavement markings vs. changes in the proposed ordinance. Reporting for Public Services Committee, Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Ms. Ash moved to amend by substitute (dated 9-5-12), seconded by Ms. Broyles. Upon query, Mr. White reviewed the changes contained in the proposed substitute involving the penalty clause, parking distance from railroad crossings and 30 ft. distance from intersections, and explained the distance scenario of "bump out" curb lines at intersections. Mr. Giroux questioned the penalty provisions with Police Chief Brian Kozak responding that any penalty imposed would be through the court's determination regarding setting of a bond and penalty amount. James Perrott Macneil commented on problems with corners and visibility; that owners have a financial investment in their purchase and shouldn't be required to store their vehicles off-site, and spoke in opposition to regulated parking. Ms. Broyles raised a point of order stating her belief that comments being made were not relevant to the motion on the floor, and noted the ordinance does allow for people to park RVs in front of their own homes and does not require them to privately store their vehicles. Ms. Ash moved to call for the question, seconded by Mr. Brown. Mr. White advised the call for the question is a motion to limit debate and requires a 2/3rd's affirmative vote to pass. Motion failed. Voting "yes" -- Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles and Dr. Rinne. Voting "no" -- Mr. Collins, Mr. Spiker and Mayor Kaysen. Discussion followed on the minimum 10 ft. distance from street centerline, or centerline pavement marking, relative to safety concerns that some streets are not wide enough for emergency response vehicles if RVs/trailers as well as other motor vehicles are parked on both sides of the street, and concern with neighbor/neighborhood conflicts. Motion to amend by substitute failed. Voting "no" -- all members of the governing body present. Ms. Ash moved to amend by substitute (dated 9-7-2012), seconded by Ms. Broyles. Upon inquiry, Mr. White advised the substitute corrects punctuation errors; reinserted a provision that states it is illegal to park where official signs prohibit parking, and added language allowing RVs or trailers that have a width of 36 or fewer feet to be parked on a street for a period of 72 hours for the purposes of loading and unloading and provided further that "slide outs" of a RV may not be deployed during loading and unloading. Mr. Dominick commented on safety regarding emergency response vehicles and street passage width involving an RV parked in the street within the 72 hour time frame. Comments followed regarding safety concerns involving street width relative to the 72 hours allowable time frame; safety vs. aesthetic issue, and 30 ft. parking distance from any point formed by an intersection as outlined in the proposed ordinance. Upon inquiry, Chief Kozak reviewed visibility limitations within a site distance triangle at intersections and advised this provision would help reduce crashes, particularly at uncontrolled intersections. Chief Kozak discussed diagrams he had provided showing examples of site distance triangles and parked vehicles' effect on driver visibility, and noted, if this provision goes into effect, it would be actively enforced and the public would need to be educated on the requirement. Upon inquiry regarding enforcement of the 72 hour parking limitation, Chief Kozak advised this restriction would be hard to be actively enforced and would require dialogue and contact with RV/trailer owners. Discussion followed on favorable aspects of the 30 ft. parking distance at intersections; parking distance from fire hydrants and driveways; suggestion that two separate ordinances could be considered addressing safety vs. RV parking issues, and whether any existing handicap parking spaces may violate the 30 ft. requirement. Mr. Allen moved to amend Section 10.52.030 by striking the phrase "for a

period of seventy-two (72) hours” and Section 10.52.200 A. 3. by adding the phrase “excluding Class B motor homes” at the end of the sentence, seconded by Ms. Broyles. Commenting on the proposed amendment were: Mr. Dominick, Gary Freeman, Mr. Hasenauer, Mr. Zachary and Victor Ciccone. Topics discussed included: Size of Class B motor homes; enforcement of 5 ft. parking distance from driveways; addressing shrubbery at intersections as a safety hazard; whether an ordinance regarding a distance restriction is needed vs. curb painting; potential additional law enforcement personnel needs, and inclusion of motor coaches with 10 wheels relative to the definition of a recreational vehicle. During comments, Chief Kozak provided information on enforcement of the 5 ft. parking distance from driveways, stating this portion of the ordinance will not change much with regard to current enforcement. Comments followed in opposition to removing the 72 hour time frame and the proposed amendment generally. Motion to amend the proposed substitute failed. Voting “yes” -- Mr. Allen, Ms. Broyles and Dr. Rinne. Voting “no” -- Ms. Ash, Mr. Brown, Mr. Collins, Mr. Spiker and Mayor Kaysen. Motion to amend by substitute (dated 9-7-12) carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Collins voting “no.” Main motion to approve on second reading as amended by substitute carried. Voting “yes” - all members of the governing body present with the exception of Mr. Collins voting “no.”

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:22 p.m.

ORDINANCE - Vacating a Portion of the Right-of-Way of Bradley Avenue at the Intersection of Bradley Avenue and East 14th Street – referred to Public Services Committee (sponsor - Ms. Ash).

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from MR-1 Medium-Density Residential Established District to MUB Mixed-Use Business Emphasis District for Block 16, Park Addition, Cheyenne, Wyoming (located between Richardson and Cosgriff Courts and between Ames Court and Dey Avenue) – referred to Public Services Committee (sponsor - Ms. Ash).

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, Changing the Zoning Classification from MUB Mixed-Use Business Emphasis District to CB Community Business District for Lots 12-22, Block 656, Original City (AKA South Cheyenne Addition), Cheyenne, Wyoming (located at 504 Central Avenue) – referred to Public Services Committee (sponsor - Ms. Ash).

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, Changing the Zoning Classification from MUB Mixed-Use Business Emphasis District to CB Community Business District for a Portion of Lot 2, Block 3, Plaza Del Range, Cheyenne, Wyoming (located at 3308 Dell Range Boulevard) – referred to Public Services Committee (sponsor - Ms. Ash).

[CA] RESOLUTION - Authorizing the filing of an application with the Federal Transit Administration, an operating administration of the United States Department of Transportation, for Federal Transportation Assistance authorized by Title 49, United States Code, Section 5307 (Cheyenne Transit Program). Motion (per Consent Agenda) carried. (#5426)

RESOLUTION - Amending Resolution No. 5335 Authorizing the City of Cheyenne, through the City Attorney's Office, to commence condemnation proceedings to obtain certain temporary construction easements for the use of certain land generally located at 1900 Converse Avenue necessary for the completion of the East Pershing Boulevard Reconstruction Project. The following individuals spoke on the proposed resolution: John Palmer, Eric Miller, Barbie Harrington, Gary Freeman, Annette Williams and M. Lee Hasenauer. Topics presented and discussed included: Opposition to the City's utilization of the eminent domain process generally; alternative options for roadway and negotiations; judicial decision-making involvement; suggestion of a different design for the proposed roundabout at the Pershing/Converse intersection (made by Mr. Miller who provided and discussed a handout depicting a roundabout design utilized in New Jersey); traffic counts at the intersection of Pershing and Converse; cost of the roundabout project; concern with taking property and setting a precedent of concern to property owners; request to reconsider moving forward with the eminent domain process; notification to citizens and representation of constituents; property needed for the project and the City's UDC. Pursuant to inquiry during comments, Nathan Beauheim, Assistant City Engineer, reviewed traffic counts for the Pershing/Converse intersection over a period of years; provided information on estimated costs of the roundabout project; explained the two phases consisting of the East Pershing Reconstruction Project and funding sources, which does not involve federal funds for the roundabout portion. Upon further inquiry, Mayor Kaysen clarified discussions have been taking place between the property owner's legal representative and the City. During comments regarding the UDC and whether it is affiliated with "Agenda 21", Mr. Collins raised a point of order that the comments were not germane with Mayor Kaysen ruling that comments should pertain to the motion on the floor. In response to previous comments regarding design of the proposed roundabout, Mr. Beauheim indicated the needs of fire department vehicles and semi-trucks were taken into consideration during the design. He explained the purpose of the resolution is to add temporary construction easements into the proceeding to allow for "blending" of project improvements, citing curb and gutter as an example, and noted if the resolution did not pass it would mean improvements would be cut-off at the property line. Upon inquiry by Mr. Miller regarding the diameter dimension (outside) of the roundabout, Mr. Beauheim stated he did not have that information with him at the meeting. Mayor Kaysen requested Mr. Beauheim follow up with the request. Reporting for Finance Committee, Mr. Brown stated there was no recommendation on the item from the Committee. Mr. Brown moved to adopt, seconded by Mr. Collins. Upon inquiry, Mr. Beauheim explained the resolution is to seek permission to make certain improvements such as curb, gutter and sidewalk that will separate the property from the parking area and, at the completion of the improvements, access to the property goes away and it is relinquished back to the property owner, noting the proposed resolution is different from the previous resolution involving eminent domain to acquire property for the roundabout. Upon inquiry, Dan White, City Attorney, expressed his impression that the property owner has no objection to the temporary construction easements as he has not heard of any objection from the property owner's attorney, and that, pursuant to the initial eminent domain resolution and resulting complaint filed involving the Hollywood Video site, a November 26-28 hearing date has been scheduled. He explained issues the City must prove at the hearing (i.e. public convenience and necessity) and judicial determinations involved; reviewed the amount of the last offer made by the City to the property owner prior to filing the condemnation complaint, and discussed the additional temporary construction easement involving approximately 1,700 sq. ft. which would be used to "blend" the property. He noted his understanding that the City does not need the easements to build the reconstruction project; that other easements have been acquired along Pershing Blvd. for the project, and that the easements are a benefit to the land owner as it enables blending of improvements. Upon query, Mr. Beauheim confirmed after work within the easement areas are done, the property owner retains ownership of their area, and Mr. White verified settlement

negotiations with the property owner can still proceed. Motion carried. Voting “yes” -- all members of the governing body present. (#5427)

RESOLUTION - Repealing Resolution No. 4919; authorizing the Director of the City of Cheyenne Parks and Recreation Department to establish fees for the use of facilities and for participation in programs administered by the Recreation, Golf and Leisure Services Divisions; and directing that certain discounts be made available to City employees, City retirees and their immediate family members. Mr. Brown moved to adopt, seconded by Mr. Spiker. Upon inquiry regarding potential effect on the budget due to discounts, Rick Parish, Parks and Recreation Director, stated it is unknown at this time whether discounts will affect budget revenues as it is hard to determine how many eligible persons would participate. Comments followed on the potential for additional memberships the City could gain due to the discounts and affordability for employees; beneficial effects that may be realized in tandem with the Employee Wellness Program; giving the discount program a “pilot try”; concern with putting the discount program in place and scenario of possibly having to remove it in the future; annual reporting requirement outlined in the resolution, and wording that states no fee increase will become effective prior to the City’s next fiscal year and be based upon the Western Urban Consumer Price Index. Upon inquiry, Mr. Parish clarified that currently fees, except golf fees, are set by the department director and commented on fees tied to the consumer price index literally vs. “ing” of amounts. It was noted that wording in Section 2. States “ ... the Director may, at his or her discretion, increase the amount of any such fee ...”. Dr. Rinne moved to amend Section 2. to delete the balance of the sentence following the words “fiscal year,” seconded by Mr. Collins. It was verified that the proposed amendment would result in the sentence reading as follows: “The Director of the Parks and Recreation Department shall conduct an annual review of fees charged by the Recreation, Golf and Leisure Services Divisions and the Director may, at his or her discretion, increase the amount of any such fee, provided however, that no fee increase shall become effective prior to the commencement of the City’s next fiscal year.” Discussion followed on current department fees, other than golf, being determined administratively by the Director; concern with employee discounts; elements involving employee benefit packages generally and current employee investment study, which is not addressing the benefits areas; employee turnover, and support for the Employee Wellness Program. Motion to amend carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Allen and Mr. Brown voting “no”. It was noted that discounts would not apply to team sports and events nor to the City’s elected officials. Upon inquiry regarding the April 1st requirement for an annual report, Mr. Parish advised adequate numbers for golf for the first report would not be available since the season is winding down, and that other activities could be monitored throughout the year. Comments followed on acquiring historical fee data and purpose of the report. Mr. Collins moved to amend by deleting Section 6. (which removes the requirement to submit an annual report by April 1st each year), seconded by Dr. Rinne. Upon inquiry regarding tracking of discount fee areas, Mr. Parish provided information on what’s in place to track certain, but not all, golf users, adding that swimming users can be tracked if employees show their City I.D., and explained other types of programs that would be difficult to track. Motion to amend carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Brown voting “no”. Main motion as twice amended carried. Voting “yes” -- all members of the governing body present with the exception of Mr. Brown and Dr. Rinne voting “no”. (#5428)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board for the Street and Alley Road Maintenance Facility Addition Project, Phase I. Motion (per Consent Agenda) carried. (#5429)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Snyder Avenue Sewer Rehabilitation Project from West 24th Street to West Pershing Boulevard. Motion (per Consent Agenda) carried. (#5430)

[CA] RESOLUTION - Prioritizing the City of Cheyenne's September 2012 applications for Mineral Royalty Capital Construction Grants. Motion (per Consent Agenda) carried. (#5431)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to submit a Beneficiary Claim form to the American Equity Investment Life Insurance Company of Des Moines, Iowa, for Death Benefits under Life Insurance Contract #018336, insuring the life of Sharon F. Tuck, deceased – referred to Finance Committee (sponsor – Mr. Brown).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 – referred to Finance Committee (sponsor – Mr. Brown).

[CA] Preliminary Plat for Chaplin Park Annex, a replat of Block 16, Park Addition, Cheyenne, Wyoming (located between Richardson and Cosgriff Courts and between Ames Court and Dey Avenue) – referred to Public Services Committee.

Cooperative Agreement between the City of Cheyenne, Wyoming Department of Transportation and Tourism Promotion Joint Powers Board for a railroad quiet zone project at the Southwest Drive/Union Pacific Railroad Crossing (2007-2010 1% Sales Tax). Mr. Brown moved to approve, seconded by Mr. Spiker. Upon inquiry regarding maintenance responsibility if the quiet zone is implemented, Nathan Beauheim, Assistant City Engineer, advised the City would be responsible for the improvements (raised median) in conjunction with existing responsibilities. Motion carried. Voting "yes" -- all members of the governing body present. (#5905)

[CA] Use Agreement between the City of Cheyenne and Creative Outdoor Advertising giving permission to install advertising bus shelter benches and pads within and along the City's Public Rights of Way. Motion (per Consent Agenda) carried. (#5906)

[CA] Professional Services Agreement between the City of Cheyenne and AVI to develop the Snyder Avenue reconstruction design (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$472,155.00). (#5907)

[CA] Lease Agreement between the City of Cheyenne and Community Resource Center of Johnson County, to lease City-owned property located at 1900 East 18th Street – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and WINhealth Partners for City employee health coverage – referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5725 between the City of Cheyenne and Reiman Corporation, Cheyenne, Wyoming, for the East Cheyenne Greenway Phase IV Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$8,221.38). (#5725)

[CA] Consideration of Bid #M-5-13 for a contract between the City of Cheyenne, 1% Construction, and CBJ Asphalt and Concrete Contractors, LLC, Phoenix, Arizona, for Fiscal Year 2013 Crack Seal Project (2007-2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$808,750.00). (#5908)

Announcement was made of the Appointment of Dave Ohde to the Downtown Development Authority Board, to be confirmed September 24, 2012.

Under other business:

Upon request, City Clerk Carol Intlekofer read an Announcement of a Public Hearing to be held at 6:00 p.m. on Monday, September 24, 2012 in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive public comment regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council's Business Ready Community, Business Committed Grant Program, to assist Microsoft in establishing a low-impact, renewable energy project in Cheyenne.

Barbie Harrington commented on agenda item #14 (Resolution to commence condemnation proceedings to obtain certain temporary construction easements for use at 1900 Converse Avenue) and queried governing body members with regard to their vote and discussions regarding the Resolution. Upon her inquiry, Fire Chief Jim Martin advised the City's largest fire truck will be able to safely navigate the proposed roundabout to be built at the Pershing/Converse intersection.

Brad Harrington provided a handout regarding the City's utilization of federal and state dollars and intergovernmental money (i.e. sales tax revenues) as part of the budget, and read a paragraph from a past article in the Wyoming Tribune Eagle regarding the City's budget. He expressed concerns with using grant money and effect on the City's budget if federal funding were reduced.

Eric Miller questioned how pedestrians would cross the roundabout to be built at Pershing/Converse intersection and response was provided by Nathan Beauheim, Assistant City Engineer, who advised a pedestrian crosses a roundabout the same way they would cross any other pedestrian crossing. Upon further inquiry by Mr. Miller regarding what occurs when an emergency vehicle approaches the roundabout, Mr. Beauheim explained existing traffic would exit the roundabout the same way you would exit any intersection when an emergency vehicle is coming, which would be to exist the roundabout and pull over to the side of the road.

M. Lee Hasenauer echoed comments previously expressed by Mr. Harrington regarding potential future revenue concern relative to federal funding, and commented on PlanCheyenne, property rights, the Unified Development Code (UDC) and process to repeal it, and questioned whether the City's UDC was related to "Agenda 21". Mayor Kaysen advised the UDC is not linked to "Agenda 21"; explained the code will undergo annual reviews involving public meetings, and stated on-going discussions and review of the code with developers and contractors are occurring and the public will have the opportunity to provide input on any proposed changes to the code. A request was made to Mr. Hasenauer that he submit UDC items he found to be objectionable.

John Palmer requested documents being discussed at the City Council meetings be projected on a screen so everyone could see them, and commented on the public participation format during

meetings. It was noted that discussions are being held regarding use of visual media at meetings.

William Bennett expressed concerns regarding a construction project affecting on-street customer parking in front of his and his wife's restaurant business near the Pershing/Snyder intersection. Upon inquiry regarding the project, Nathan Beauheim, Assistant City Engineer, advised that construction is suppose to be completed in that area some time this week. Mr. Beauheim advised they did let the contractor know they were not happy with the defective product and he advised he would follow up on it.

Eric Miller questioned adopting the International Code. James Perrott Macneil commented on roundabouts located on the east coast and how they are used and spoke in opposition to the roundabout proposed for Pershing/Converse intersection and using eminent domain to get the land. He further commented on his lineage and advised he disagreed with the resolution to give employees reduced fees for city recreational activities.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 10:41 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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